

22TRCV00690 22TRCV00690

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Case Number: 22TRCV00690 Hearing Date: September 14, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Monday,
September 14, 2026 Department M Calendar
No.

PROCEEDINGS

Briana
Navidad, et al. v. American Honda Motor Company, Inc., et al.

22TRCV00690

1. Briana Navidad, et al.'s Motion for Attorneys' Fees,
Costs, and Expenses
2. American Honda Motor Company, Inc.'s Motion to Strike,
or, in the Alternative, Tax Costs

TENTATIVE RULING

Briana Navidad, et al.'s Motion for Attorneys' Fees,
Costs, and Expenses is granted in part.

American Honda Motor Company, Inc.'s Motion to Strike,
or, in the Alternative, Tax Costs is granted in part.

Background

Plaintiffs filed the Complaint on August 11, 2022. Plaintiffs allege the following facts. Plaintiffs purchased a 2019 Honda Civic which was manufactured and distributed by Defendant. The vehicle suffers from defects. Defendant has not been able to repair the vehicle. Defendant has refused to repurchase the vehicle. Plaintiffs allege violations of the Song-Beverly Consumer Warranty Act ("Song-Beverly Act").

Motion for Attorneys' Fees

Civ. Code, § 1794(d) states: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

Plaintiffs move for attorneys' fees and costs pursuant to Civ. Code section 1794(d) as the prevailing party in this action. Neither party disputes the contention that the settlement agreement provided that Plaintiffs are the prevailing party and that the instant Court would determine the amount of reasonable attorneys' fees. Thus, the Court will determine the amount of reasonable attorneys' fees incurred via this noticed motion.

"The trial court has "broad authority" to determine the amount of [reasonable attorneys' fees]."

PLCM Group v. Drexler (2000)

22 Cal.4th 1084, 1095. "[T]he fee

setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." Id.

"California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." Id.

"The experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." Ketchum v.

Moses (2001) 24 Cal.4th 1122, 1132 (internal quotation omitted.)

Thus, Plaintiffs are entitled to attorneys' fees under the lodestar method based on the reasonable amount of time the attorney spent multiplied by a reasonable rate. Plaintiffs request \$30,256.20 in attorneys' fees actually incurred and \$12,483.22 in costs and expenses. The total amount requested in fees, costs and expenses is \$42,739.42.

Plaintiffs attached as Exhibit A to the declaration of Roger Kirnos a full and detailed accounting of the billing and invoices related to this matter. (Decl., Roger Kirnos, Ex. A). Plaintiffs did not provide specific information regarding the rates charged by the attorneys and paralegals in this case in the declaration itself. Declarant Kirnos did provide a summary of the attorneys' respective experience. However, the billing statement does provide a range from \$350 to \$575 per hour for the attorneys. (Id. at Ex. A, p. 8).

Defendant opposes the motion and argues that the time expended and hourly rates were excessive and not supported. Defendant contends that the Court should award a lesser amount since Plaintiff fails to establish that the fees are reasonable. *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240. Defendant also argues that no multiplier should be awarded. Defendant concludes that Plaintiff should be awarded no more than \$17,926.50 in attorneys' fees.

"The lodestar adjustment method requires the trial court first to determine a touchstone or lodestar figure based on actual time spent and reasonable hourly compensation for each attorney. The touchstone figure may then be augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award. For Song-Beverly Consumer Warranty Act claims, [a] prevailing buyer has the burden of 'showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," and were "reasonable in amount." *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 998 (internal citations and quotations omitted). "Just as a court has discretion to increase the lodestar under several factors in such a case, it may also decrease it by looking at those same factors, including [...] the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances

in the case.” Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 160–161(internal quotations omitted).

The Court deems that, based on the nature of this case and the complexity of this case, the action does not warrant the addition of any multiplier or a deduction through the imposition of a negative multiplier. The Court finds that some of the hourly rates charged were excessive considering the nature of this case, the settlement amount, the attorneys’ experience and background, the hourly rate in the community, and the type of work undertaken by counsel. The Court finds that \$350/hour is a reasonable maximum hourly rate for the type of work involved and the nature of this action.

The Court also declines to reduce the hours spent litigating this action other than the .5 hours at \$425/hour which Plaintiff acknowledges was inadvertently included. While there may be certain areas of billing and time spent where an opposing party might have grounds to question, the Court cannot state that the hours expended were unnecessary or unreasonable.

Thus, the time expended by attorneys Maite Colon, Mitch Rosensweig, Sundeep Samra, Timothy Lupinek, Thach Tran, and Zachary Powell consisted of 57.1 hours (57.6 less .5 for the acknowledged mistake). 57.1 hours at \$350/hour = \$19,985.00. The Court declines to include any additional amounts that were set forth in the declaration of Chris Swanson executed on September 4, 2026. As to the requested costs, the Court will address this in the motion to tax costs.

Therefore, the Court grants Plaintiff’s Motion for Attorneys’ Fees, in part. Thus, the Court fixes reasonable attorneys’ fees in the amount of \$19,985.00. The Court awards a total amount of attorneys’ fees in the amount of \$19,985.00.

Motion to
Strike or Tax Costs

“Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section

1010.6(a)(4).” Cal. Rules of Court, Rule 3.1700(b)(1).

“Unless objection is made to the entire cost memorandum, the motion to strike or tax costs must refer to each item objected to by the same number and appear in the same order as the corresponding cost item claimed on the memorandum of costs and must state why the item is objectionable.” Cal. Rules of Court, Rule 3.1700(b)(2).

“If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion.” *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774 (internal citation omitted).

“The memorandum of costs shall be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case. Initial verification will suffice to establish the reasonable necessity of the costs claimed. There is no requirement that copies of bills, invoices, statements, or any other such documents be attached to the memorandum. Only if the costs have been put in issue via a motion to tax costs must supporting documentation be submitted. Once this occurs, the issue becomes whether the required documentation must be of evidentiary quality. Rule 870(a)(1) does not specify the type of documentation required.” *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.

Defendant moves “for an order to strike, or in the alternative, tax certain costs claimed by Plaintiffs Briana Navidad and Maria Navidad (collectively “Plaintiffs”). This motion is made pursuant to Code of Civil Procedure sections 1032, 1033, and 1033.5 et seq. on the grounds that numerous items in Plaintiffs’ cost memorandum are not authorized by statute and were not reasonably necessary to the conduct of litigation.” (Notice of Motion, p. 2, lines 5-9).

Defendant seeks to tax or strike the costs of \$4,133.97 for the expert fees of Chris Morales. Expert fees and reasonable expenses are

recoverable items of costs under CC § 1794(d). Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137-138. Defendant argues that Chris Morales was never designated as an expert and merely attended an inspection of the vehicle which was conducted by Defendant. Interestingly, Plaintiff's opposition groups the two experts together Morales and Thomas Lepper. Plaintiff voluntarily withdraws an amount of \$1,870.00 from the amount sought based on Thomas Lepper's status as an expert witness. However, Plaintiff submitted no facts to indicate that Chris Morales was ever designated as an expert in this action. Thus, the motion to strike costs as to the expert fee of Chris Morales is granted. In addition, the Court notes that the bulk of the costs and expenses of Chris Morales are for travel, accommodations, and expenses rather than any actual work performed by Chris Morales.

Defendant seeks to strike the cost of \$52.44 which was delineated as "travel" in "Other Costs" in paragraph 13 of the memorandum of costs. Plaintiff cites again to Jensen for the broad proposition that CC § 1794(d) provides for the recovery of costs incurred for the prosecution of the action. Civ. Code, § 1794(d) states: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action."

The Court determines that the broad language of the statute may provide for the recovery of travel expenses if reasonably incurred. Here, Plaintiff has stated that the travel expenses were incurred by counsel to attend the vehicle inspection. The Court determines that such costs are reasonable. However, Plaintiff has voluntarily reduced the amount to \$27.23.

Therefore, the memorandum of costs is reduced as follows:

1: \$4,133.97 for the expert fee of Chris Morales;

2: \$1,870.00 voluntary reduction for the expert fee of Thomas Lepper

3: \$25.21 voluntary reduction for travel costs.

Thus, the total amount taxed is \$6,029.18. Therefore,
the amount of costs in the memorandum of costs is reduced from \$12,483.22 to \$6,454.04.

Plaintiff is ordered to give notice of this ruling.